

25STCP03909 25STCP03909

County: los-angeles

Division: Civil Law and Motion

Department: 310

Hearing date: 2026-07-10

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C310%2C07%2F10%2F2026

Source SHA-256: ae33cf3339932854f9aa69f1f97d35d6b6992cdeeb80965e3aee16bbd89eb548

Case Number: 25STCP03909 Hearing Date: July 10, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: July 10, 2026

Case Name: Phibonacchii v. Northlight Specialty Insurance Company

Case No.: 25STCP03909

Matter: Motion to Declare Plaintiff to be a Vexatious Litigant, etc.

Moving Party: Respondent Northlight Specialty Insurance Company

Responding Party: Unopposed

Notice: OK

Ruling: The Motion is granted in part.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

On April 29, 2026, Respondent Northlight Specialty Insurance Company filed a motion to find Petitioner Lord Phibonacchii to be a vexatious litigant and to restrain concerning communications with parties in this lawsuit.

Under Code Civ. Proc. § 391(b), a vexatious litigant is a person who does any of the following:

- (1) In the immediately preceding seven-year period has commenced, prosecuted, or maintained in propria persona at least five litigations other than in a small claims court that have been (i) finally determined adversely to the person or (ii) unjustifiably permitted to remain pending at least two years without having been brought to trial or hearing.
- (2) After a litigation has been finally determined against the person, repeatedly relitigates or attempts to relitigate, in propria persona, either (i) the validity of the determination against the same defendant or defendants as to whom the litigation was finally determined or (ii) the cause of action, claim, controversy, or any of the issues of fact or law, determined or concluded by the final determination against the same defendant or defendants as to whom the litigation was finally determined.
- (3) In any litigation while acting in propria persona, repeatedly files unmeritorious motions, pleadings, or other papers, conducts unnecessary discovery, or engages in other tactics that are frivolous or solely intended to cause unnecessary delay.
- (4) Has previously been declared to be a vexatious litigant by any state or federal court of record in any action or proceeding based upon the same or substantially similar facts, transaction, or occurrence.

Previously, Petitioner dismissed this action but then moved to set aside that dismissal specifically to oppose the instant Motion. No opposition, however, has been filed.

Respondent's evidence, including the Declaration of Suzanne Badawi and records of federal and state proceedings, demonstrates that Petitioner has engaged in a pattern of meritless litigation, repeated unsuccessful motions, and has been designated a vexatious complainant by the California State Bar. Petitioner has shown a clear pattern of filing, dismissing, and refiling actions to avoid adverse rulings, forum shopping, and failing to cooperate in discovery, satisfying the statutory criteria under § 391(b)(1) and § 391(b)(3). Petitioner is declared to be a vexatious litigant.

The Court will also enter a prefilng order against Petitioner.

Respondent also seeks a protective order restraining Petitioner's communications to various counsel and unrelated third-parties, which Respondent contends is harassing and intimidating.

While some of Petitioner's behavior is concerning, due to free speech implications, the Court, in the exercise of its discretion, will not enter a protective order.

In sum, Petitioner is declared to be a vexatious litigant subject to a prefilng order. However, no protective order will be entered at this time.

The Motion is granted in part as set forth herein.

Moving party to give notice.